

SENATE No. 155

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to authorizing supported decision-making agreements for certain adults with disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/31/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/6/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/14/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/21/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/21/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>2/23/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/5/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/21/2025</i>
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>4/2/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/4/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/4/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>4/7/2025</i>

<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/30/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>7/22/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>9/10/2025</i>

SENATE No. 155

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 155) of Joan B. Lovely, Sean Garballey, Alyson M. Sullivan-Almeida, James K. Hawkins and other members of the General Court for legislation relative to supported decision-making agreements for certain adults with disabilities. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 109 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to authorizing supported decision-making agreements for certain adults with disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after
2 section 16F the following section:-

3 Section 16F½. The executive office of health and human services shall establish a
4 training program on supported decision-making. The training program shall include instruction
5 by state agencies including, but not limited to, the department of developmental services, the
6 department of mental health and the executive office of elder affairs. The training program shall
7 be provided to any supporter or decision-maker pursuant to section 5-601 of chapter 190B and
8 shall include instruction on the rights and obligations contained in section 5-602 of chapter 190B
9 and dispute resolution. The executive office of health and human services shall consult with the

10 executive office of elder affairs, the department of developmental services, the department of
11 mental health, the department of public health, the Disability Law Center, the Massachusetts
12 Health and Hospital Association, the Massachusetts Medical Society, the Massachusetts Bankers
13 Association and adults who receive supported decision-making assistance and supporters who
14 assist in decision-making pursuant to a supported-decision making agreement in the development
15 of the training. The training shall be in a format accessible to the individuals receiving the
16 training.

17 SECTION 2. Section 2 of chapter 71B of the General Laws, as appearing in the 2022
18 Official Edition, is hereby amended by inserting, in line 86, after the word “sec.” the following
19 paragraph:- The department of elementary and secondary education shall promulgate regulations
20 in consultation with the department of higher education requiring school districts, as part of their
21 transitional planning process for students with disabilities, to inform students and their families
22 of the availability of supported decision-making as an alternative to adult guardianship for
23 students with disabilities that are receiving services at age sixteen. The department shall provide
24 supported decision-making agreement training to schools and post all training materials on the
25 department’s website including a sample form for a decision-maker to request the release of
26 educational records.

27 SECTION 3. Section 3 of said chapter 71B of the General Laws, as so appearing, is
28 hereby amended by inserting, in line 301 after the word “program.” the following paragraph:- At
29 the first IEP meeting after a student has turned age sixteen or older, the IEP team shall inform the
30 student and their family or guardian, of the availability of supported decision-making agreements
31 as an alternative to guardianship. The IEP team shall assist the child and their family or guardian

in locating resources to assist in establishing a supported decision-making plan if the child and their family or guardian are interested in supported decision-making.

SECTION 4. Section 5-303 of said chapter 190B, as appearing in the 2022 Official Edition, is hereby amended by inserting, in line 50, after the word “guardianship”, the following words:- or a supported decision-making agreement.

SECTION 5. Subsection (b) of section 5-303 of said chapter 190B, as so appearing, is hereby amended, by inserting after paragraph (9) the following paragraph:-

(9½) a copy of any supported decision-making agreement executed by the person alleged to be incapacitated, if available:-

SECTION 6. Chapter 190B of the General Laws is hereby amended by inserting after section 5-507 the following sections:-

Section 5-601. Definitions:

As used in this section, the following words shall have the following meaning unless the context clearly requires otherwise:

“Adult”, an individual 18 years of age or older.

“Coercion”, the use of force or threats to persuade someone to do something.

“Decision-maker”, an adult who seeks to execute, or has executed, a supported decision-making agreement with 1 or more supporters under this chapter.

“Executed”, a supported decision-making agreement that is signed by both the decision maker and all supporters in accordance with requirements set forth in this chapter.

“Supported decision-making”, the process of supporting and accommodating the decision-maker, without impeding the self-determination of the decision-maker, in making life decisions, including, but not limited to: (i) decisions related to where the decision-maker wants to live; (ii) the services, supports, financial decisions and medical care the decision-maker wants to receive; (iii) whom the decision-maker wants to live with; and (iv) where the decision-maker wants to work.

“Supported decision-making agreement”, a voluntary, written agreement, written in plain language that is accessible and understood by the decision-maker and entered into by the decision-maker with one or more supporters pursuant to section 5-602 used to support decision-making.

“Supporter”, an adult who meets the requirements of section 5-602 and has executed a supported decision-making agreement with a decision-maker.

Section 5-602.

(1)(a) A decision-maker may voluntarily enter into a supported decision-making agreement with 1 or more supporters.

(b) The decision-maker may amend or terminate a supported decision-making agreement at any time pursuant to section 5-602(3)(e).

(2)(a) Any person, eighteen years of age or older, may be a supporter.

(b) A person shall not serve as a supporter in a supported decision-making agreement when:

(1) The decision-maker previously made, or makes, an allegation of elder abuse against the supporter.

(2) The decision-maker has obtained or obtains a Protection from Abuse Order against the supporter or a harassment prevention order against the supporter under chapter 258 of the General Laws.

(3) The supporter is the subject of a civil or criminal order prohibiting contact with the decision-maker;

(4) The supporter has been removed as the conservator of the decision-maker, based upon a finding that they did not act in the conservatee's best interest; or

(5) The supporter is found criminally, civilly, or administratively liable for abuse, neglect, mistreatment, coercion, or fraud.

(3)(a) Except as limited by a supported decision-making agreement, a supporter shall do all the following:

(1) Respect the values, beliefs, and preferences of the decision-maker.

(2) Act honestly, diligently, and in good faith.

(3) Act within the scope identified by the decision-maker.

(4) Support and implement the direction, will, and preferences of the decision-maker.

(5) Maintain confidentiality of any information obtained by a supporter, unless the decision-

91 maker specifically authorizes its disclosure.

92 (6) Exercise only the authority granted to the supporter in the supported decision-making
93 agreement.

94 (b)(1) Except as limited by a supported decision-making agreement, a supporter may,
95 with the consent of the decision-maker, provide to the decision-maker decision-making
96 assistance regarding the decision-maker's affairs, including, but not limited to: (i)
97 communicating decisions and understanding information about, options for, the responsibilities
98 of and the consequences of decisions; (ii) accessing, obtaining and understanding information
99 that is relevant to decisions, necessary for the decision-maker to manage their affairs, including,
100 but not limited to, medical records, including protected health information under the Health
101 Insurance Portability and Accountability Act of 1996 (Pub. L. 104-191); psychological and
102 financial records; educational records under the Family Education Rights and Privacy Act of
103 1974 (20 U.S.C. s. 1232g), or information protected by 42 U.S.C.A. s. 290dd-2, 4 C.F.R. Part 2;
104 as well as other educational records including Individualized Education Programs, transcripts, a
105 transition plan, a student summary of performance and any other materials as requested; (iii)
106 ascertaining the wishes and decisions of the decision-maker, assisting in communicating those
107 wishes and decisions to other persons and assisting to ensure the decision-maker's wishes and
108 decisions are implemented; and (iv) accompanying the decision-maker and participating in
109 discussions with other persons when the decision-maker is making decisions or attempting to
110 obtain information needed to make decisions.

(c) Unless the supporter has a valid legal authorization to do so and the action is within the scope of their authority, a supporter shall not do either of the following: (i) make decisions for, or on behalf of, the decision-maker, or (ii) sign documents on behalf of the decision-maker.

(d) A supporter shall not participate in any life decision in which they have a conflict of interest. This includes, but is not limited to, any decision in which the supporter, his or her immediate family or partner, a business organization in which he or she is serving as officer, director, trustee, partner or employee has a financial interest or other direct and substantial interest in the outcome.

(e) A supporter shall only be authorized to assist the decision-maker in accessing, collecting or obtaining information that is relevant to a decision authorized under the supported decision-making agreement and to which the decision-maker agrees that the supporter should have access pursuant to a written authorization in accordance with the applicable federal or state privacy laws. The decision-maker may withdraw the authorization at any time in whatever manner is authorized by applicable state or federal law. A supporter shall keep confidential any information obtained in the process of assisting the decision-maker.

(f) A decision-maker may bring a civil action for damages and equitable relief, including injunctive relief, resulting from a violation of this section or a regulation promulgated under this section in any court of competent jurisdiction.

(4) The existence of a supported decision-making agreement shall not preclude a decision-maker from seeking personal information without the assistance of a supporter.

(5) To be valid, a supported decision-making agreement shall be signed and dated by the decision-maker and each applicable supporter in the presence of a notary public. The decision-

133 maker may use reasonable modifications, such as assistive technology or physical assistance, to
134 sign the agreement.

135 (6) Evidence of undue influence or coercion in the creation or signing of a supported
136 decision-making agreement shall render the supported decision-making agreement invalid.

137 (7) A supported decision-making agreement shall be personalized by the decision-maker
138 to reflect the decision-maker's personal circumstances. A supported decision-making agreement
139 shall:

140 (a) be in writing in plain language that is accessible and understood by the decision-
141 maker;

142 (b) identify the decision-maker and all supporters;

143 (c) describe the types of decisions with which each supporter shall assist the decision-
144 maker. If the decision-maker wants assistance to access their medical records, the agreement
145 must specifically reference that the supporter shall have access to protected health information
146 under the Health Insurance Portability and Accountability Act of 1996 (Pub. L. 104-191). If the
147 decision-maker wants assistance to access their education records, the agreement must
148 specifically reference that the supporter shall have access to protected education records under
149 the Family Education Rights and Privacy Act of 1974 (20 U.S.C. s. 1232g) or information
150 protected by 42 U.S.C. a. s. 290dd-2, 4 C.F.R. Part2; as well as other education records including
151 Individualized Education Programs, transcripts, a transition plan, a student summary of
152 performance and any other materials.

(d) indicate that all supporters agree to assist the decision-maker in making such decisions, to respect the decision maker's decisions and to assist the decision-maker in communicating such decisions;

(e) state that supporters shall not make decisions for the decision-maker;

(f) indicate that the decision-maker may amend or terminate the supported decision-making agreement at any time and for any reason subject to the requirements of subsection (e);

(g) list contact information for the disabled persons protection commission, the elder abuse hotline and all programs providing services to the decision-maker; and

(h) include a statement from each supporter that they understand and accept their roles, responsibilities and limitations as outlined in section 5-602(3)(a).

(8) A person who receives the original or a copy of a supported decision-making agreement shall rely on the agreement and recognize a decision, request or communication made with the decision-making assistance of a supporter as the decision, request or communication of the decision-maker. A written confirmation from the decision-maker may be required affirming that the supported decision-making agreement presented is current.

(9) A person or entity that, in good faith, acts in reliance on a decision made pursuant to a supported decision-making agreement shall not be subject to civil or criminal liability or to professional discipline.

(10)(a) The supported decision-making agreement shall remain in effect until it is terminated or expires.

(b) A supportive decision-making agreement shall be terminated as follows:

(1) On any termination date set forth in the agreement but no more than a term of three years, unless extended by agreement, in writing, of the decision-maker and supporters, pursuant to section 5-602 with terms of execution.

(2) A supporter may terminate participation in a supported decision-making agreement at any time, by written notice to the decision-maker and any other supporters to the agreement; provided, however, that if the agreement has more than 1 supporter, the agreement shall remain valid as to all other supporters.

(3) A decision-maker may terminate a supported decision-making agreement at any time by written notice to all supporters to the agreement.

(4) Notice of the suspension of a supporter pursuant to section 5-602 shall be given in writing and delivered in hand to said person or his or her attorney, or sent by registered mail to said person at his or her residence or his place of business. Such notice so given, delivered or sent shall automatically suspend the authority of such person to perform the duties of his or her office or employment until he or she is notified in like manner that his or her suspension is removed.

(5) The death or incapacitation of the decision-maker.

(6) In the event that the decision-maker becomes subject to a guardianship order, the scope of the supported decision-making agreement may be limited in whole or in part by the probate and family court to those decisions reserved for the decision-maker after the issuance of the guardianship order.

(11)(a) The disabled persons protection commission, an elder protective services agency, the department of developmental services, the department of mental health or any person interested in the decision-maker's welfare may petition the probate and family court to revoke or suspend the role of the supporter within one or more supported decision-making agreements on the grounds of abuse, neglect, exploitation or failure of the supporter to follow their roles and responsibilities resulting in serious physical, emotional, or financial harm to the decision-maker, or on the grounds that the supporter is not qualified pursuant to section 5-602(2)(b). The court shall provide notice to the decision-maker and supporter and provide an opportunity for the decision-maker and supporter to be heard. The court shall revoke or suspend the role of the supporter within the supported decision-making agreement, in whole or in part, if the court makes a finding under any grounds set forth in this paragraph. The court shall not order a supported decision-making agreement to remain in effect over the objection of the decision-maker. If the decision-maker is indigent, the court shall appoint counsel for the decision-maker upon the filing of any petition under this paragraph.

The court shall tally the number of individuals who appear before the court on supported decision-making agreement issues. A report of the court's findings shall be submitted annually, as of June 30, to the clerks of the senate and house of representatives, the joint committee on committee on children, families and persons with disabilities and the senate house committees on ways and means.

(b)(1) If a person who receives a copy of a supported decision-making agreement or is aware of the existence of a supported decision-making agreement has cause to believe that the decision maker is being abused, neglected or exploited by a supporter, the person may report the

216 alleged abuse, neglect or exploitation to the disabled persons protection commission pursuant to
217 chapter 19C or the elder abuse prevention hotline pursuant to chapter 19A.

218 (2) If a mandated reporter pursuant to subsection (a) of section 15 of said chapter 19A or
219 said chapter 19C has reasonable cause to believe that the decision-maker has been abused,
220 neglected or exploited by a supporter, the mandated reporter shall make a report to the disabled
221 persons protection commission or an elder protective services agency, as applicable.

222 (c) Execution of a supported decision-making agreement shall not be a condition of
223 participation in any activity, service or program.

224 (d) Nothing in this section shall be interpreted to limit or restrict the right of an individual
225 to execute a health care proxy pursuant to chapter 201D or a power of attorney pursuant to this
226 chapter.

227 SECTION 7. A supported decision-making agreement executed before July 31, 2025,
228 shall be valid until July 31, 2026. Thereafter, only supported decision-making agreements that
229 conform to the requirements of section 5-602 of chapter 190B of the General Laws shall be
230 valid.

231 SECTION 8. Section 6 shall take effect on July 31, 2025.

232 SECTION 9. The training program required by section 16F½ of chapter 6A of the
233 General Laws shall be implemented by the department of health and human services no later
234 than 6 months after the passage of this act.

235 SECTION 10. The department of elementary and secondary education shall promulgate
236 regulations pursuant to section 2 of chapter 71B of the General Laws no later than 6 months after
237 passage of this act.

238 SECTION 11. The executive office of health and human services shall promulgate
239 regulations no later than 6 months after the passage of this act.